

Vidhya Devi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 May 2022 · Writ - C No. 9347 of 2022 · **Disposed; Para 6.5 objection permitted; coercive recovery stayed.**

HEADNOTE

A writ against a demand notice of Rs. 2,58,156 and a recovery certificate for the balance electricity bill was disposed of, without any opinion on merits, with liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks, to be decided after hearing, preferably within four weeks. Coercive action on the demand was restrained for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

Vidhya Devi, electricity consumer no. KR72010068105 (account no. 781723131192), approached the Allahabad High Court against a demand notice dated 18 January 2022 issued by the power distribution corporation for Rs. 2,58,156 towards the remaining electricity bill, and a recovery certificate dated 25 February 2022 issued for that sum. She sought quashing of both and a restraint on coercive recovery. The corporation's counsel stated, on instructions, that she could file an objection to the demand, to be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Objection to an electricity demand as the remedy in a writ against recovery

HOLDING

Without expressing any opinion on the merits of a demand notice and recovery certificate for the balance electricity bill, the writ is disposed of with liberty to the consumer to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks, together with a certified copy of the order. If the objection is filed in time, the licensee shall decide it in accordance with law, expeditiously and preferably within four weeks, after affording a hearing. Coercive action on the impugned demand shall not be taken for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ challenging the demand notice and recovery certificate was disposed of, without a decision on merits, by giving liberty to file an objection under Para 6.5 before the distribution licensee within four weeks. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The dispute over the remaining electricity bill of Rs. 2,58,156 was left to an objection under Para 6.5, to be decided by the licensee in accordance with law after hearing the consumer. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 18.01.2022 AND THE RECOVERY CERTIFICATE DATED 25.02.2022 FOR RS. 2,58,156 WERE LIABLE TO BE QUASHED.

The Court expressed no opinion on merits and left the objection to be decided by the distribution licensee under Para 6.5. ¶ 1

